

25LBCV01523 25LBCV01523

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-06-25

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Case Number: 25LBCV01523 Hearing Date: June 25, 2026 Dept: S27

1. Background

Facts

Plaintiff, Enrique Valdez filed

this action against Defendant, Mobashshera Jadeen for damages arising out of an automobile accident on 11/21/25.

The Court heard OSCs re: failure to file proof of service on 8/04/25 and 10/09/25, continuing the matter to 11/21/25. Plaintiff failed to appear on 11/21/25, and the Court dismissed the action.

2. Motion

to Vacate Dismissal

a.

Relief Sought by Plaintiff

On 1/20/26, Plaintiff filed this motion to vacate the dismissal, contending it was entered as a result of his mistake or excusable neglect. The motion is granted.

The dismissal was entered without any statutory or other authority for dismissing the action. CCP §583.420(a)(1) permits the Court to dismiss an action if the summons and complaint are not served within two years after the action is filed. §583.410 also permits the Court to dismiss an action if the case is not brought to trial

within two years after filing. There are various other statutes that permit dismissal of an action, none of which apply here. Pursuant to *Lyons v. Wickhorst* (1986) 42 Cal.3d 911, 915-917, the Court's powers to dismiss absent a statutory basis are extremely limited, and can only be applied in sham actions or where a delay of less than the statutory period has been prejudicial to the other party. Because the dismissal was entered without statutory or other basis, it is void and the Court vacates the dismissal.

b. Future Hearings

Plaintiff has not, to date, filed proof of service of the summons and complaint on Defendant. The Court sets an OSC re: proof of service and case management conference for August 5, 2026.

Plaintiff is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If any party does not submit on the tentative, the party should make arrangements to appear remotely at the hearing on this matter.